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PREPARE TO LEAD, DEBATE AND REPRESENT NOT JUST A COUNTRY BUT A CAUSE

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LETTER FROM EXECUTIVE BOARD

Dear Delegates,

It gives us immense pleasure to welcome you to the Emergency Special Session of the United Nations General Assembly. The agenda before this committee, “Protection of Civilians in Conflicts Involving Non-State Armed Groups,” lies at the very heart of contemporary international peace and security debates. In today’s world, where conflicts are increasingly shaped by the actions of actors beyond state control, the humanitarian imperative of safeguarding civilian lives is both urgent and complex.

Through this background guide, we aim to provide you with a foundation to understand the legal frameworks, case studies, regional practices, and thematic concerns central to this discussion. However, it is you, the delegates, who will bring these issues to life. We encourage you to go beyond theory, to negotiate with both conviction and compromise, and to draft resolutions that are ambitious yet grounded in international law and humanitarian principles.

We look forward to witnessing thought-provoking debates, constructive collaboration, and innovative proposals. Let this session not only deepen your understanding of international relations but also inspire you to contribute meaningfully to the global effort of protecting civilians caught in conflict.

Wishing you the very best for the committee,
The Executive Board

Introduction

The United Nations General Assembly (UNGA) has long stood as the most representative deliberative body of the international community, charged with safeguarding peace, security, and cooperation among Member States. When the Security Council is unable to act due to political deadlock, the UNGA may convene an Emergency Special Session (ESS) to address urgent threats to international peace and security.

The agenda before this committee focuses on the protection of civilians in conflict zones where non-state armed groups challenge state authority and international humanitarian law.

This discussion is both timely and significant. From Libya to Syria, and from the Central African Republic to broader regional crises, the involvement of non-state armed actors has complicated humanitarian responses and raised fundamental questions about sovereignty, accountability, and the scope of international responsibility.

Delegates are tasked not only with analyzing these complexities but also with proposing pragmatic and innovative measures that uphold the principles of international humanitarian and human rights law while responding to the realities of modern conflict.

By exploring past interventions, regional approaches, and thematic issues such as the recruitment of child soldiers and the challenges of humanitarian access, this committee has the opportunity to recommend collective measures that reaffirm the UN's central mandate of protecting civilian populations.

Historical Context and Evolution

The concept of humanitarian intervention has evolved significantly since the post-Cold War era. The failures in Rwanda (1994) and Srebrenica (1995) demonstrated the devastating consequences of international inaction in the face of mass atrocities. These tragedies catalyzed the development of the Responsibility to Protect doctrine, formally adopted at the 2005 World Summit.

The R2P framework established three pillars: first, the state's responsibility to protect its population; second, international assistance to help states fulfill this responsibility; and third, the international community's responsibility to take timely and decisive action when states manifestly fail to protect their populations from genocide, war crimes, ethnic cleansing, and crimes against humanity.

However, the practical application of R2P has proven contentious. The 2011 NATO intervention in Libya, initially justified as a humanitarian mission to protect civilians, evolved into regime change operations that left the country fragmented and controlled by various armed groups. This experience significantly impacted international willingness to invoke R2P, contributing to paralysis over Syria despite overwhelming evidence of mass atrocities.

Case Study Analysis

Libya (2011): From Protection to Regime Change

The 2011 intervention in Libya stands as a watershed moment in the modern discourse on humanitarian intervention and the practical application of the Responsibility to Protect (R2P) doctrine. The context was the rapid escalation of violence following the outbreak of protests against the government, which were met with significant force, raising fears of mass atrocities.

In response, the United Nations Security Council adopted Resolution 1973 (2011), which authorized Member States to take “all necessary measures” to protect civilians, including the establishment of a no-fly zone. This resolution marked the first time the Council had explicitly invoked R2P in authorizing the use of force, signaling a major development in the legal and political area of civilian protection.

Initially, the implementation focused on preventing aerial attacks against civilian populations. However, the scope of operations gradually expanded as international forces engaged ground targets and supported opposition groups. What began as a narrowly defined civilian protection mandate soon evolved into actions that effectively facilitated regime change.

The collapse of central authority and the absence of a coordinated post-conflict stabilization plan left Libya in a prolonged state of fragmentation, marked by competing governments, regional militias, and a persistent lack of security. This case highlights several critical issues in humanitarian intervention. First, once military operations commence, maintaining a strict separation between humanitarian objectives and political or strategic outcomes becomes increasingly difficult.

Second, the presence of armed opposition groups embedded within civilian populations complicated the task of distinguishing legitimate protection efforts from active participation in a civil conflict. Third, the destruction of core state institutions without adequate investment in transitional governance and reconstruction generated long-term instability, weakening possibilities for sustainable peace.

Today, Libya illustrates the consequences of intervention without comprehensive post-conflict planning. Large parts of the country remain outside the control of recognized national authorities, while various armed actors, some with external backing, compete for territorial and political dominance. The United Nations Support Mission in Libya (UNSMIL), established in 2011, continues to struggle with facilitating dialogue between numerous non-state armed actors while supporting civilian protection.

Syria: The Limits of Intervention

The ongoing conflict in Syria provides a clear illustration of the significant constraints on humanitarian intervention when consensus among major powers cannot be reached. Despite substantial evidence of mass atrocities, including systematic attacks on healthcare facilities in direct violation of Security Council Resolution 2286 (2016), the Council was unable to take decisive action due to the Russian and Chinese Vetoes.

This paralysis highlights the structural challenges within the international system when urgent protection needs arise in situations of high geopolitical contention. Within Syria, armed non-state actors operate across a broad spectrum. On one end are relatively moderate opposition groups seeking to contest state authority, while on the other are proscribed organizations designated as terrorist entities under international law.

This diversity in organization, objectives, and operational methods complicates both the negotiation of humanitarian access and the implementation of protection mandates. Humanitarian actors must navigate complex security environments in which armed groups may impose restrictions on movement, control aid delivery, or manipulate assistance for strategic purposes, all while civilian populations remain exposed to direct threats.

The Syrian case further highlights the difficulty of applying international humanitarian and human rights law in contexts where Several armed groups that are not part of the official government actually control and manage certain towns or regions, influencing security, access to resources, and daily life for the civilians living there, even though they are not legally recognized as the legitimate government. The presence of banned or designated terrorist groups is often used as a reason by authorities or parties to the conflict to limit humanitarian operations, which in practice makes it harder for aid agencies to assist civilians in need.

Moreover, the Syrian conflict highlights the operational and ethical problems faced by the international community in protecting civilians under conditions of fragmented authority. Negotiations with local armed actors require careful distinction between engaging for humanitarian purposes and providing political recognition, while ensuring that aid reaches populations without worsening local conflicts.

Central African Republic: Sanctions and Engagement

The situation in the Central African Republic (CAR) illustrates the international community's evolving approaches to engaging with non-state armed groups while maintaining a focus on civilian protection and national stabilization. In recent years, the Security Council has employed targeted sanctions against specific groups and individuals responsible for violence, including arms embargoes, travel bans, and asset freezes. These measures seek both to limit the capacity of armed groups to sustain conflict and to create incentives for participation in political dialogue.

At the same time, regional organizations such as the African Union and the Economic Community of Central African States (ECCAS) have played a critical role in facilitating negotiations between the government and armed factions, showing the importance of regional mediation in conflict resolution.

The 2019 Political Agreement for Peace and Reconciliation, concluded between the government and 14 armed groups with African Union support, demonstrated the potential of inclusive dialogue to reduce violence. However, despite this formal agreement, implementation has faced persistent challenges. Armed groups have frequently fragmented, with these fragmented factions rejecting the accords and continuing to engage in violent activities. This pattern highlights a recurring difficulty in peace processes involving non-state actors: while agreements may establish broad frameworks for peace, the lack of unified command structures among armed groups often worsens compliance.

The United Nations Multidimensional Integrated Stabilization Mission in the Central African Republic (MINUSCA), established in 2014, reflects an adaptive approach to these realities. Its mandate extends beyond traditional peacekeeping to include strong operations against factions refusing to join peace processes, alongside support for political reconciliation, institution-building, and civilian protection. This integrated strategy combines elements of peace enforcement with long-term capacity-building, seeking to balance immediate security concerns with the gradual restoration of state authority.



Regional and Thematic Considerations

African Union Approaches

The African Union (AU) has developed a range of innovative normative and operational frameworks to address the challenges posed by non-state armed groups, particularly in situations where state authority is weak and civilian populations face acute risks. One of the most significant instruments is the Kampala Convention on the Protection and Assistance of Internally Displaced Persons in Africa (2009), which is the first legally binding regional treaty of its kind.

The Convention explicitly prohibits armed groups from engaging in practices such as forced displacement, attacks against humanitarian personnel, and the recruitment or use of children in armed conflict. It also obliges States Parties to adopt measures that ensure accountability for violations committed by both state and non-state actors, reinforcing international humanitarian law within a regional legal framework.

Beyond legal instruments, African regional organizations have increasingly assumed leadership roles in responding to armed group activity. The Economic Community of West African States (ECOWAS), in particular, has demonstrated its capacity to deploy political and military tools in complex conflicts. Interventions in Liberia (1990s), Sierra Leone (1997–1999), and Mali (2013) illustrate a pattern of regional engagement that combines coercive measures against armed groups with political dialogue, peace negotiations, and community-level initiatives to reduce violence.

The AU itself has also deployed peace operations, such as the African Union Mission in Somalia (AMISOM) and later the African Union Transition Mission in Somalia (ATMIS), which were mandated to combat armed groups while simultaneously supporting national institutions and protecting civilians

Together, these approaches illustrate the AU's growing role in shaping responses to non-state armed groups through a blend of legal instruments, peace operations, sanctions, and mediation processes. While challenges remain in ensuring adequate resources, coordination with the United Nations, and compliance by all parties, the AU's evolving frameworks provide important regional models for balancing military pressure with political dialogue and community engagement in addressing armed group violence.

Children and Armed Conflict

The recruitment and use of children by armed groups remains one of the most pressing protection challenges in contemporary conflicts. Children are exploited in a variety of roles, ranging from combatants and porters to intelligence gatherers and, in some contexts, forced marriage or sexual slavery. Such practices constitute grave violations of international humanitarian and human rights law, as reflected in the Optional Protocol to the Convention on the Rights of the Child on the involvement of children in armed conflict (2000) and reinforced by the Paris Principles (2007).

The United Nations has consistently highlighted this issue through the Children and Armed Conflict (CAAC) agenda, which identifies six grave violations against children in conflict situations, including recruitment, killing and maiming, and attacks on schools and hospitals. In this regard, Security Council Resolution 2764 (2024) highlights the importance of strengthening child protection capacities within peace operations and during transitions, ensuring that child-specific expertise is integrated into mandates, reporting mechanisms, and disarmament, demobilization, and reintegration (DDR) programs.

Engagement strategies with armed groups that recruit children must carefully balance accountability with practical imperatives. On the one hand, perpetrators must not enjoy impunity for grave violations; on the other, humanitarian actors often require dialogue with these groups to negotiate the safe release of children and guarantee access for child protection services. This dual approach reflects the complexity of implementing justice while prioritizing the immediate safety and welfare of children.

International frameworks such as the Vancouver Principles (2017) provide practical guidance for military, political, and humanitarian actors in addressing the recruitment and use of child soldiers, particularly in peacekeeping contexts. Complementary initiatives, including the Safe Schools Declaration (2015), expand the protection agenda by safeguarding children's access to education in conflict-affected settings. These instruments collectively emphasize prevention, the protection of children in military operations, and long-term reintegration into communities.

Legal Framework and Obligations

International Humanitarian Law and Non-State Actors

Armed non-state groups are bound by international humanitarian law (IHL) when they become parties to non-international armed conflicts. Common Article 3 of the Geneva Conventions and Additional Protocol II establish clear obligations for these groups, including prohibitions against violence against persons not taking an active part in hostilities.

The International Criminal Tribunals for the Former Yugoslavia and Rwanda have clarified that organized armed groups must possess certain characteristics: a command structure, territorial control, the ability to conduct sustained military operations, and the capacity to implement legal obligations. These criteria distinguish genuine armed groups from mere bandits or criminal organizations.

Importantly, IHL obligations for non-state actors are not dependent on recognition or legitimacy. As established by customary international law, all parties to armed conflict must respect fundamental humanitarian principles regardless of their legal status.

Human Rights Obligations

The extent of human rights obligations for armed non-state groups remains contested in international law. However, there is growing recognition that groups exercising de facto governmental functions over territory and population may bear human rights responsibilities.

The UN Human Rights Council and various special procedures have increasingly addressed violations by non-state actors, particularly when these groups control territory and exercise governmental-like authority. This pragmatic approach recognizes that civilians under the control of non-state groups deserve protection regardless of the legal status of their de facto authorities.

Context:

The permanent members of the UNSC can block resolutions using the veto power. This power can result in a lack of unanimity, escalating the crisis at hand. In such situations, the UNGA can consider the matter. Although the UNGA cannot make legally binding resolutions, it can recommend collective measures to tackle a crisis.

An Emergency Special Session of the UNGA is an unscheduled meeting convened to address an urgent matter at hand.

MANDATE OF UNGA-ESS

Convening Authority

The Emergency Special Session may be convened at the request of the UNSC when it fails to fulfil its purpose of maintaining peace and security due to a lack of unanimity or upon consensus of UN Member States.

Objective

The ESS can consider urgent threats to international peace and security and address these concerns by recommending measures for collective action.

Authority

The ESS can examine issues and determine if they are a threat to peace or not, and formulate recommendatory resolutions for collective action and facilitate international cooperation when the UNSC is incapable of making decisions. Enforcement of measures recommended by the ESS solely depends on compliance by Member States.

KEY CHALLENGES

Legal Issues

UN peacekeeping or humanitarian missions must have a clear mandate from the United Nations before intervening in conflict zones.

If the mandate isn't clear, then using external force against armed non-state groups could be considered illegal under International law.

Operational Challenges

High risk of attacks in conflict zones; armed non-state groups may attack civilians or peacekeepers. Negotiating safe passage is difficult. Poor coordination can escalate the harm and cause gaps in protection.

Peacekeepers have restricted authority when it comes to the use of force.

They have to act within their mandates, therefore limiting what they can do against armed groups.

Emerging Technologies

AI-driven surveillance can invade the privacy of civilians. Use of drones in conflict zones may result in false positives, violating international law. Wrong predictions can further mislead peacekeepers, putting civilians at risk. Digital systems can be manipulated by armed groups. A flawed system could reveal sensitive information or plans.

Purpose of the Agenda

This agenda focuses on the conditions of civilians in conflict zones, especially where governments cannot provide adequate protection. Humanitarian agencies must adopt effective strategies to intervene and protect civilians without violating international law.



Future Considerations and Recommendations

Strengthening Legal Frameworks

The international community should consider developing more precise legal instruments addressing armed group obligations. While existing IHL applies to these actors, a clearer articulation of specific responsibilities could enhance compliance and accountability.

Regional human rights courts and mechanisms could play expanded roles in addressing violations by non-state actors. The African Court on Human and Peoples' Rights and similar bodies have begun addressing such cases, providing important precedents for future development.

Enhancing Protection Mechanisms

UN peacekeeping operations should receive more specific guidance on engaging non-state actors within protection mandates. Current rules of engagement often lack clarity in distinguishing between legitimate political groups and criminal actors.

The Secretary-General's recommendations following Resolution 2730 should address protection gaps in areas controlled by non-state actors, including potential mechanisms for extending protective presence through innovative deployment strategies.

Improving Humanitarian Access

Systematic documentation of effective humanitarian negotiation practices with armed groups should inform broader policy development. The humanitarian community possesses extensive experience that could be codified into more effective operational guidelines.

Counter-terrorism legislation must be carefully calibrated to avoid criminalizing legitimate humanitarian engagement with non-state actors. Current frameworks often create legal uncertainties that impede access to populations in need.



Guiding Questions for Delegates

How can the international community balance respect for sovereignty with the need to protect civilians in areas controlled by non-state armed groups?

What mechanisms should the General Assembly recommend for ensuring humanitarian access in territories beyond effective state control?

How can peacekeeping mandates be refined to address the specific challenges posed by non-state actors while avoiding mission creep?

What role should regional organizations play in addressing humanitarian crises involving armed non-state groups?

How can the international community ensure accountability for violations of international law by non-state actors?

What innovative approaches might enhance the protection of humanitarian personnel operating in areas controlled by armed groups?

How should the principle of "Responsibility to Protect" evolve to address contemporary challenges involving non-state actors?

Conclusion

The protection of civilians in conflicts involving non-state armed groups remains one of the most pressing dilemmas for the international community. Case studies highlight both the necessity and the difficulty of intervention, revealing the consequences of inaction, overreach, and inadequate post-conflict planning. Regional organizations and international frameworks have made important contributions, yet the gaps in legal clarity, operational mandates, and humanitarian access persist.

The Emergency Special Session of the General Assembly offers a unique platform for Member States to overcome political gridlock and collectively address these gaps. Delegates are encouraged to approach the agenda with a balance of legal rigor, political sensitivity, and humanitarian urgency. The discussions and resolutions emerging from this committee can contribute not only to immediate protection needs but also to the long-term development of a more coherent and principled international response to armed conflicts.

Useful Links

https://www.icrc.org/sites/default/files/topic/file_plus_list/0923-increasing_respect_for_international_humanitarian_law_in_non-international_armed_conflicts.pdf

<https://www.ohchr.org/en/instruments-mechanisms/instruments/protocol-additional-geneva-conventions-12-august-1949-and-0>

<https://guide-humanitarian-law.org/content/article/3/non-state-armed-groups/>

http://www.scielo.org.mx/scielo.php?script=sci_arttext&pid=S1870-46542023000100065

<https://www.geneva-academy.ch/research/our-clusters/non-state-actors/detail/4-armed-non-state-actors-and-the-human-rights-council>

<https://press.un.org/en/2024/15707.doc.htm>

<https://docs.un.org/en/A/RES/79/140>

[https://docs.un.org/en/S/RES/2730\(2024\)](https://docs.un.org/en/S/RES/2730(2024))

<https://peacekeeping.un.org/en/principles-of-peacekeeping>

https://www.law.cornell.edu/wex/geneva_conventions_and_their_additional_protocols

<https://www.globaljusticecenter.net/how-can-international-humanitarian-law-bind-non-state-actors/>

[https://docs.un.org/en/S/RES/1674\(2006\)](https://docs.un.org/en/S/RES/1674(2006))

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